

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #10	CCRB Case #: 202100050	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 12/18/2020 6:35 PM, Friday, 12/18/2020 6:50 PM, Friday, 12/18/2020 6:55 PM	Location of Incident: § 87(2)(b) in Queens; En route to the 110 PCT stationhouse; at the 110 PCT stationhouse	18 Mo. SOL 6/18/2022	Precinct: 110		
Date/Time CV Reported Sat, 12/19/2020 12:10 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/04/2021 11:36 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM David Calhoun	30063	963427	110 PCT
2. PO Sergio Musso	07520	966732	110 PCT
3. Officers			110 PCT
4. SGT Steven Betts	01565	938062	110 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Jodi Rodriguez	02860	939339	110 PCT
2. PO Joseph Xerri	09326	939721	110 PCT
3. PO Bryant Cabrera	16229	965036	110 PCT
4. PO Johnmichael Schramm	21001	959212	110 PCT
5. PO Nicholas Gismondi	11997	960592	110 PCT
6. PO Michael Nardo	06826	963177	110 PCT
7. PO Patrick Oshea	17115	964198	110 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Sergio Musso	Discourtesy: Outside § 87(2)(b) in Queens, Police Officer Sergio Musso spoke discourteously to § 87(2)(b)	A . Substantiated
B . SGT Steven Betts	Discourtesy: Outside § 87(2)(b) in Queens, Sergeant Steven Betts spoke discourteously to § 87(2)(b)	B . Substantiated
C . Officers	Force: Outside § 87(2)(b) in Queens, officers used physical force against § 87(2)(b)	C . Unfounded
D . PO Sergio Musso	Discourtesy: Outside § 87(2)(b) in Queens, Police Officer Sergio Musso spoke discourteously to § 87(2)(b)	D . Substantiated
E . POM David Calhoun	Discourtesy: En route to the 110th Precinct stationhouse, Police Officer David Calhoun spoke discourteously to § 87(2)(b)	E . Miscellaneous - Subject Resigned
F . POM David Calhoun	Force: En route to the 110th Precinct stationhouse, Police Officer David Calhoun used a chokehold against § 87(2)(b)	F . Miscellaneous - Subject Resigned
G . POM David Calhoun	Force: En route to the 110th Precinct stationhouse, Police Officer David Calhoun used physical force against § 87(2)(b)	G . Miscellaneous - Subject Resigned
H . POM David Calhoun	Force: En route to the 110th Precinct stationhouse, Police Officer David Calhoun restricted § 87(2)(b) breathing.	H . Miscellaneous - Subject Resigned

Officer(s)	Allegation	Inv. Div. Recommendation
I . PO Sergio Musso	Discourtesy: En route to the 110th Precinct stationhouse, Police Officer Sergio Musso spoke discourteously to § 87(2)(b)	I . Substantiated
J . POM David Calhoun	Discourtesy: At the 110th Precinct stationhouse in Queens, Police Officer David Calhoun spoke discourteously to § 87(2)(b)	J . Miscellaneous - Subject Resigned
K . POM David Calhoun	Discourtesy: At the 110th Precinct stationhouse, Police Officer David Calhoun spoke discourteously to § 87(2)(b)	K . Miscellaneous - Subject Resigned

Case Summary

On December 19, 2020, Captain Ramnauth Ramlochan of Patrol Borough Queens North called the IAB Command Center desk line and filed this complaint on behalf of § 87(2)(b). The CCRB received this complaint on January 4, 2021.

On December 18, 2020, § 87(2)(b) neighbor called 911 and said that § 87(2)(b) was asking for money regarding a motor vehicle accident and the § 87(2)(b) said that he was an NYPD officer. Police Officer Sergio Musso and Police Officer Jodi Rodriguez of the 110th Precinct responded in regard. While speaking with § 87(2)(b) outside § 87(2)(b) in Queens, PO Musso told § 87(2)(b) that his story “is all fucked up” (**Allegation A, Discourtesy: Word, Substantiated**). Minutes later, PO Musso and PO Rodriguez placed § 87(2)(b) under arrest. Their supervisor, Sergeant Steven Betts of the 110th Precinct, came to the scene. While speaking with a handcuffed § 87(2)(b) Sgt. Betts asked him, “Why are you talking shit?” (**Allegation B, Discourtesy: Word, Substantiated**). After § 87(2)(b) said multiple racial epithets to Sgt. Betts, Sgt. Betts said, “What the fuck are you saying, bro?” (also **Allegation B, Discourtesy: Word, Substantiated**). § 87(2)(b) alleged that officers picked him up and “tossed” him in the backseat of a marked police vehicle (**Allegation C, Force: Physical Force, Unfounded**).

§ 87(2)(b) sat in a marked police vehicle with PO Musso driving and Police Officer David Calhoun of the 110th Precinct sitting in the backseat with § 87(2)(b). While inside the police vehicle, PO Musso said to § 87(2)(b) “Stay in the fucking car” (**Allegation D, Discourtesy: Word, Substantiated**). PO Calhoun, in response to § 87(2)(b) rustling around in the backseat, said multiple times, “Keep fucking around” (**Allegation E, Discourtesy: Word, Miscellaneous – Subject Resigned**). PO Calhoun allegedly placed his arm around § 87(2)(b) neck (**Allegation F, Force: Chokehold, Miscellaneous – subject resigned**). PO Calhoun then applied pressure to § 87(2)(b) neck as PO Calhoun pushed § 87(2)(b) entire body and face against the left rear door and window of the marked SUV (**Allegation G, Force: Physical Force, Miscellaneous – subject resigned**). § 87(2)(b) had difficulty breathing because of how his head was smushed against the glass of the window (**Allegation H, Force: Restricted Breathing, Miscellaneous – subject resigned**). In response to § 87(2)(b) yelling, PO Musso said from the front seat, “Why don’t you shut your fucking mouth?” (**Allegation I, Discourtesy: Word, Substantiated**).

Outside the 110th Precinct stationhouse, PO Calhoun said “I don’t give a fuck,” and “You’ll be ‘aight, fuck you” to § 87(2)(b) (**Allegation J, Discourtesy: Word, Miscellaneous, Subject Resigned**). Inside the 110th Precinct stationhouse, after § 87(2)(b) spit on him, PO Calhoun said, “You just spit, you fucking asshole” (**Allegation K, Discourtesy: Word, Miscellaneous, Subject Resigned**).

PO Musso prepared two arrest reports for § 87(2)(b). The first regarded the initial incident regarding the neighbor – § 87(2)(b) was charged with grand larceny in the fourth degree, criminal impersonation in the second degree (public servant), obstruction of governmental administration in the second degree, false personation, and disorderly conduct (**BR 01**). The second regarded § 87(2)(b) behavior while in the backseat of the marked vehicle with PO Calhoun and at the stationhouse – § 87(2)(b) was charged with assault in the second degree, harassment in the second degree, and a violation of Public Health Law 2121 as a “disorderly disease carrier” (**BR 02**). [§ 87(2)(b)]

Additional to the body-worn camera (BWC) footage received from Sgt. Betts, PO Callhoun, PO Musso, and PO Rodriguez, the investigation received BWC from the following officers: Police Officer Bryant Cabrera, Police Officer Nicholas Gismondi, Police Officer Michael Nardo, Police Officer Patrick O'Shea, Police Officer John Michael Schramm, and Police Officer Joseph Xerri. The relevant aspects of this video footage shall be discussed below. **(BR 04-15, 26).**

Findings and Recommendations

Allegation (A) Discourtesy: Outside § 87(2)(b) in Queens, Police Officer Sergio Musso

spoke discourteously to § 87(2)(b)

This allegation stems from PO Musso's BWC (BR 04). Between the 03:07 and 17:55 timestamps, PO Musso talks with § 87(2)(b). At first, § 87(2)(b) explains that his neighbor had damaged his father's car and that the neighbor had refused to provide his insurance information. § 87(2)(b) then tells PO Musso and PO Rodriguez that he used to be an NYPD officer in the 44th Precinct. § 87(2)(b) later amended himself, saying at 13:15 that he was an ex-officer and said so to the neighbors. PO Musso asked § 87(2)(b) why he would invoke his former authority: "What were you trying to accomplish?" § 87(2)(b) replied that he wanted to show the neighbors that he could call his former partner. For several more minutes, PO Musso spoke with § 87(2)(b). At 17:35, § 87(2)(b) asks PO Musso, "Why are you trying to get the story straight? Answer me that question." PO Musso replies, "Because your story is all fucked up, that's why."

After reviewing his BWC in his CCRB interview (BR 16), PO Musso said that he made the statement, "Because your story is all fucked up, that's why" because he was trying to say that § 87(2)(b) story did not add up.

Per Patrol Guide Procedure 200-02 (BR 17), the values of the NYPD include the pledge to "maintain a higher standard of integrity than is generally expected of others" and to "respect the dignity of each individual and render [their] services with courtesy and civility." Per DAO-DCT Disciplinary Case No. 2013-10143 (BR 18), "profanity has been found to be permissible where the officer has resorted to such language in the heat of a highly dangerous situation."

PO Musso's statement – "Because your story is all fucked up, that's why" – § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be **substantiated**.

Allegation (B) Discourtesy: Outside § 87(2)(b) **in Queens, Sergeant Steven Betts spoke discourteously to** § 87(2)(b)

This allegation stems from Sgt. Betts' BWC (BR 07). Sgt. Betts arrives on-scene after PO Musso and PO Rodriguez handcuffed § 87(2)(b). At the 01:15 timestamp, Sgt. Betts inspects § 87(2)(b) wallet and instructs officers to place him in a police vehicle. § 87(2)(b) tells Sgt. Betts that he used to be a police officer in the 44th Precinct. § 87(2)(b) then says, "What college did you go to? I went to NYU and I still became a cop." Sgt. Betts says, "Seems like it." § 87(2)(b) then continues speaking, "What jargon is that?" before saying something inaudible about "the book." Sgt. Betts says, "What?" § 87(2)(b) continues: "What did you do at the academy? Did you slack off?" Sgt. Betts then shines a flashlight in § 87(2)(b) eyes and says, "Are you alright, man? Are you high?" § 87(2)(b) says, "No." Sgt. Betts retorts, "Then why are you talking shit?" § 87(2)(b) responds by saying, "Irish spick" multiple times. Sgt. Betts then replies, "What? Oh, you're a cop... and you're talking to cops like this?" Officers begin to place § 87(2)(b) inside a marked RMP as § 87(2)(b) says, "Irish piece of shit. Latinos are better. Latinos are better." Sgt. Betts then quietly says, "What the fuck are you saying, bro?" at 02:16. PO Musso then sits § 87(2)(b) down in a marked RMP.

In his CCRB interview (BR 19), Sgt. Betts said that § 87(2)(b) said something that Sgt. Betts took to be hostile, something along the lines of, "Did you even go to college?" Sgt. Betts shined a flashlight in § 87(2)(b) face and asked, "Are you intoxicated?" § 87(2)(b) said, "No," and Sgt. Betts replied, "Then why you talking shit?" § 87(2)(b) said, "I'm not." Sgt. Betts again directed officers to place him in the back of the marked RMP. Sgt. Betts did not have a particular reason to say, "Shit." This was the last time Sgt. Betts interacted with § 87(2)(b). Sgt. Betts did not recall saying, "What the fuck are you saying, bro?" Sgt. Betts reviewed the BWC clip described in the paragraph above and still did not hear himself saying, "What the fuck are you saying, bro?" but heard someone say something along the lines of, "What are you saying, bro?"

Per Patrol Guide Procedure 200-02 (BR 17), the values of the NYPD include the pledge to

“maintain a higher standard of integrity than is generally expected of others” and to “respect the dignity of each individual and render [their] services with courtesy and civility.” Per DAO-DCT Disciplinary Case No. 2013-10143 (BR 18), “profanity has been found to be permissible where the officer has resorted to such language in the heat of a highly dangerous situation.”

Sgt. Betts’ statements – “Then why are you talking shit?” and “What the fuck are you saying, bro?” § 87(2)(g)

it is recommended that **Allegation B** be substantiated.

Allegation (C) Force: Outside § 87(2)(b) in Queens, officers used physical force against § 87(2)(b)

In his CCRB interview (BR 20), § 87(2)(b) said that after he was handcuffed, four officers picked § 87(2)(b) up as he continued to struggle and try to run into his house. The officers tossed him in the backseat of the marked SUV through the open rear left door.

Per PO Musso’s BWC between the 19:34 and 23:34 timestamps (BR 04), § 87(2)(b) never runs away from police officers. Officers never pick up § 87(2)(b) and officers do not “toss” him in the backseat. PO Musso alone physically guides § 87(2)(b) into a marked police vehicle and does so without incident.

It is recommended that **Allegation C** be unfounded.

Allegation (D) Discourtesy: Outside § 87(2)(b) in Queens, Police Officer Sergio Musso spoke discourteously to § 87(2)(b)

This allegation stems from PO Musso’s BWC (BR 04). At the 27:10 timestamp, PO Musso opens the door of the marked police vehicle in which a handcuffed § 87(2)(b) sits. Once PO Musso opens the door, § 87(2)(b) says, “Imma punch you in the face. You ready?” PO Musso says, “Shut up.” § 87(2)(b) continues, “One.” PO Musso responds, “Sit up.” § 87(2)(b) again continues, “One, two... Stop touching me, abuse of power, asshole, back up. I could take you and fuck you up, though.” PO Musso responds, “Yeah, sure.” § 87(2)(b) turns his body so that his legs begin to face out of the car. § 87(2)(b) speaks with an officer on the other side of the RMP. An officer asks PO Musso why the seatbelt is off § 87(2)(b) and PO Musso explains that § 87(2)(b) had manually unbuckled the seatbelt. § 87(2)(b) then moves his torso out of the car. In response, while guiding § 87(2)(b) back into the car, PO Musso says, “Stay in the fucking car.” PO Musso then holds § 87(2)(b) by the arm while another officer re-buckles the seatbelt over § 87(2)(b) torso and hips.

In his CCRB interview (BR 16), PO Musso reviewed his BWC between the 27:11 and 27:59 timestamps, which captures this allegation. PO Musso made the statement, “Stay in the fucking car” because § 87(2)(b) was trying to get out of the car and PO Musso was frustrated in the heat of the moment.

Per Patrol Guide Procedure 200-02 (BR 17), the values of the NYPD include the pledge to “maintain a higher standard of integrity than is generally expected of others” and to “respect the dignity of each individual and render [their] services with courtesy and civility.” Per DAO-DCT Disciplinary Case No. 2013-10143 (BR 18), “profanity has been found to be permissible where the officer has resorted to such language in the heat of a highly dangerous situation.”

PO Musso’s statement – “Stay in the fucking car” – § 87(2)(g)

it is recommended that **Allegation D** be substantiated.

Allegation (E) Discourtesy: En route to the 110th Precinct stationhouse, Police Officer David

Calhoun spoke discourteously to § 87(2)(b)

Allegation (F) Force: En route to the 110th Precinct stationhouse, Police Officer David

Calhoun used a chokehold against § 87(2)(b)

Allegation (G) Force: En route to the 110th Precinct stationhouse, Police Officer David

Calhoun used physical force against § 87(2)(b)

Allegation (H) Force: En route to the 110th Precinct stationhouse, Police Officer David

Calhoun restricted § 87(2)(b) breathing.

Allegation (J) Discourtesy: At the 110th Precinct stationhouse in Queens, Police Officer David

Calhoun spoke discourteously to § 87(2)(b)

Allegation (K) Discourtesy: At the 110th Precinct stationhouse, Police Officer David Calhoun spoke discourteously to § 87(2)(b)

Per PO Calhoun's BWC (BR 14), at the 03:38 timestamp, PO Calhoun says multiple times to § 87(2)(b) "Keep fucking around."

In his CCRB interview (BR 20) and a subsequent phone call (BR 22), § 87(2)(b) said he jerked his torso back and forth to keep PO Calhoun from touching him. § 87(2)(b) alleged that PO Calhoun then put his left arm between § 87(2)(b) handcuffed arm and back — § 87(2)(b) described that PO Calhoun held him "like a riot shield" — and then placed his right hand on the back and right sides of § 87(2)(b) neck. PO Calhoun applied pressure to § 87(2)(b) neck as PO Calhoun pushed § 87(2)(b) entire body against the left rear door and window of the marked SUV. § 87(2)(b) face pressed up against the glass. § 87(2)(b) had difficulty breathing because of how his head was smushed against the glass of the window. § 87(2)(b) did not feel as though he was choked. PO Calhoun told § 87(2)(b) to calm down.

PO Calhoun's BWC was partially covered by his outer jacket during this portion of the incident, which is captured between the 03:38 and 06:15 timestamps (BR 14). On the verbal record, § 87(2)(b) repeatedly says that PO Calhoun has a hand on his neck, that PO Calhoun put § 87(2)(b) in a headlock, that PO Calhoun has a hand around his neck. The footage does not show PO Calhoun placing his hands on § 87(2)(b) upper torso or neck, but the obstruction of the camera and the perspective of the camera itself (PO Calhoun's torso and camera face towards the front windshield whereas § 87(2)(b) is 90 degrees to the left of PO Calhoun) makes it impossible to determine what force PO Calhoun used on § 87(2)(b) if any.

Per PO Calhoun's BWC at the 06:20 timestamp (BR 14), in response to § 87(2)(b) complaining that he lost a shoe, PO Calhoun says, "I don't give a fuck." At the 06:32 timestamp, in response to § 87(2)(b) complaining about the circulation in his wrists, PO Calhoun says, "You'll be 'aight, fuck you."

Per PO Calhoun's BWC at the 10:31 timestamp (BR 14), § 87(2)(b) spits on PO Calhoun. In response, PO Calhoun says, "You just spit, you fucking asshole."

§ 87(2)(g)

it is recommended that Allegations E, F, G, H, J, and K be closed as **miscellaneous – subject resigned**.

Allegation (I) Discourtesy: En route to the 110th Precinct stationhouse, Police Officer Sergio Musso spoke discourteously to § 87(2)(b)

This allegation stems from PO Musso's BWC (BR 04). At the 33:27 timestamp, as PO Musso drives § 87(2)(b) to the 110th Precinct stationhouse with PO Calhoun sitting with § 87(2)(b), § 87(2)(b) yells about how PO Calhoun's nose is out from underneath his face mask. PO Musso says, "Why don't you shut your fucking mouth?"

In reviewing his BWC in his CCRB interview (BR 16), PO Musso said he made this statement, "Why don't you shut your fucking mouth?" in the heat of the moment as § 87(2)(b) was kicking his seat, kicking the door and windows, and screaming.

Per Patrol Guide Procedure 200-02 (BR 17), the values of the NYPD include the pledge to "maintain a higher standard of integrity than is generally expected of others" and to "respect the

dignity of each individual and render [their] services with courtesy and civility.” Per DAO-DCT Disciplinary Case No. 2013-10143 (BR 18), “profanity has been found to be permissible where the officer has resorted to such language in the heat of a highly dangerous situation.”

PO Musso’s statement – “Why don’t you shut your fucking mouth?” – § 87(2)(g)

As such, it is recommended that **Allegation I** be substantiated.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 23).
- Sgt. Betts has been a member of service for 16 years and has been a subject in five CCRB complaints and 11 allegations, none of which were substantiated. § 87(2)(g)
- This was the first and only case to which PO Calhoun was a subject.
- PO Musso has been a member of service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 5, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (BR 24).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 10

Investigator:	<u>Ethan C. Waterman</u>	<u>Inv. Ethan Waterman</u>	<u>03/01/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Eric Rigie</u>	<u>IM Eric Rigie</u>	<u>3/2/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date